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California Bill to Ban Food Products Containing Chemicals Linked to Cancer

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This week, parents are purchasing an abundance of candy and goodies to fill up their children's Easter baskets for the holiday. It's a happy tradition. Kids are excited to see what's inside of their bright cellophane-wrapped basket. Whether you picked the Easter favorite Peeps marshmallows or popular multi-colored Skittles, Ring Pops to give to them — or serve pink Nesquik strawberry milk products for their lunch, it's assumed that the worst your child will get is a sugar rush.

After all, when grocery shopping for you and your family, the presumption is that the foods and various sweet treats you buy are safe to eat.

However, these food products marketed towards children — mainly sweets and junk food like Nesquick, Peeps and Skittles are among the thousands that contain toxic chemicals that have been linked to health problems, including cancer.

In an effort to protect children, a new California assembly bill seeks to prohibit the manufacture, sale and distribution of food products containing toxic chemicals.

Assembly Bill (AB) 418, authored by Assemblymembers Jesse Gabriel (D-Encino) and Buffy Wicks (D-Oakland), targets five specific chemicals: red dye No. 3, titanium dioxide, potassium bromate, brominated vegetable oil and propyl paraben.

The bill is the first of its kind in the nation to ban a chemical that is added to food as an ingredient.

"Part of the real motivation behind this bill is protecting kids," Gabriel said. "Many of these chemicals are included in food and candy that are specifically marketed and targeted towards kids. In many cases, disproportionately targeted towards kids in Black and Brown communities."

Although there are thousands of chemicals put into our food, these five were selected for the bill for being the "worst of the worst." Scientific studies have linked these chemicals to a host of health problems.

Red dye No. 3 and potassium bromate have been linked to cancer; titanium dioxide can damage a person's DNA; propyl paraben has been linked to harm to the hormone and reproductive systems, including decreased sperm counts; and excessive consumption of brominated vegetable oil, which can be found in soda, can lead to bromism — a toxic condition that can result in slurred speech, loss of coordination, personality changes and hallucinations.

All five chemicals have been banned for use in food in the European Union.

Their usages vary from being a colorant to a food preservative and are found in thousands of products widely advertised –encouraging your purchase –prominently positioned on store shelves.

A food guide from the Environmental Working Group (EWG) lists nearly 3,000 items that contain red dye No. 3, including the aforementioned Nesquik strawberry milk and Peeps marshmallows, Nerds popsicles, milk chocolate nutritional shakes from Ensure, Goya guava nectar, Jell-O pudding, Quaker instant grits, Jack Link's beef jerky, Pillsbury Funfetti buttermilk pancake mix, sugar cookies from Archer Farms and cupcake and casserole products from Betty Crocker.

During a recent press briefing held by Gabriel, it was explained that these chemicals are allowed in the country due

to a loophole in the Food and Drug Administration (FDA) called the "GRAS loophole." Beginning in 1997, companies are allowed to decide on their own what ingredients qualify as GRAS — "generally recognized as safe" — and to report these designations to the FDA on a voluntary basis.

A 2022 analysis by the EWG found that since 2000, nearly 99 percent of all food chemicals were greenlighted for use by the food and chemical industry, not the FDA.

The National Cancer Institute said that cancer is the leading cause of death by disease in children in the United States. It is estimated that in 2021, approximately 10,000 children ages 0-14 years old were diagnosed and approximately 1,200 died from it.

A study by the Coalition Against Childhood Cancer in 2021 said that overall incidence of cancer has been increasing by an average of 0.8 percent since 1975; however, the incidence rate increased to an average 1 percent a year starting in 1997.

Gabriel said the bill is not meant to ban any food products, but instead to make the companies behind them use safer, alternative ingredients. He said that products and brands including Coca-Cola, Gatorade, Papa Johns and Dunkin' Donuts have moved away from using red dye No. 3.

However, Gabriel said there has been pushback from the food chemical companies and from the trade associations that represent them.

"What is frustrating to me is there is still a way for them to make a profit without poisoning our kids," Gabriel said. "They just need to make slightly different dyes or slightly adjust their recipes."

Scott Faber, senior vice president of government affairs for EWG, echoed that sentiment, saying that — for the chemical companies — it isn't a question of – if there are safer or cheaper ingredients, but a matter of convenience.

"It is inconvenient for food companies to change their formulas to avoid using chemicals linked to cancer in products marketed towards kids. That's it," Faber said. "Unfortunately, it's going to take an act of the state legislature to require these companies to do something as simple as … change an ingredient in a recipe."

Wicks spoke of the harm the chemicals can cause, especially in children, and how the government is not doing enough to keep consumers safe. She brought up how in 1990, the FDA banned the usage of red dye No. 3 in cosmetic items due to its link to cancer.

"Then why, more than three decades later, is it okay to put [red dye No. 3] inside of our bodies, specifically our children?" Wicks asked. "And, if the FDA is not going to keep our communities safe, then it's up to us here in the states to take swift and decisive action on this."

Andrew Zimmern, a chef and TV personality, emphasized how the food and chemical industry was taking advantage of the GRAS loophole and how FDA has been slow to address these concerns.

"In the rare case when the FDA does review a food chemical for safety, the FDA does not periodically update their review to reflect any new science, so some FDA reviews have not been updated since the 1960s and 1970s," Zimmern explained. "As a member of our food community, when I understood that red dye No. 3 was still being used … I was horrified.

"Waiting for the FDA to do its job is not an option."

Jean Luong, a pediatric oncology nurse, has seen firsthand the effects of cancer in young children — some who become too weak to eat on their own. When she learned about toxic chemicals being put into food geared towards children, she said she was appalled.

"What is going on? How can we, concerned citizens of the US — one of the wealthiest and most medically advanced countries in this world — allow this to happen?" Luong said. "[The five] toxic chemicals listed in AB 418 have no business being in our food. … We should not eat them, and we definitely must not feed them to our children."

AB 418 will be presented before the Assembly Health Committee for a vote on April 11. If the bill is signed into law, it will go into effect in two years, on Jan. 1, 2025.

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